

26VECV02686 26VECV02686

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Tentative Ruling

Dhaliwal v. Rahlin, Case no. 26VECV02686

Hearing date September 24, 2026

Defendant

MCM's Demurrer to/Motion to Strike FAC

Plaintiff

lessees Dhaliwal and Kapoor sue defendants Rahlin and defendant Modern Community Management ("MCM"), alleging water intrusion, moisture, mold contamination, plumbing and HVAC issues and other habitability issues. MCM demurs to the FAC and moves to strike punitive damages allegations. Plaintiffs oppose.

Defendant MCM's Demurrer to the FAC

"The

function of a demurrer is to test the sufficiency of the complaint as a matter of law." *Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts," *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550, but plaintiff must allege essential facts "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. *Doheny Park Terrace Homeowners Ass'n., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.

MCM

demurs to the second cause of action for private nuisance. Where an alleged nuisance is based on defendant's alleged failure to exercise due care, the nuisance claim is governed by the rules of negligence. *City of San Diego v. U.S. Gypsum Co.* (1990) 30 Cal.App.4th 575, 587. Where the alleged nuisance results from defendant's alleged negligent conduct, rules of negligence are applied. *Martinez v. Pacific Bell* (1990) 225 Cal.App.3d 1557, 1565.

MCM

argues the nuisance cause of action is duplicative of the negligence cause of action. *Lussier v. San Lorenzo Valley Water Dist.* (1988) 206 Cal.App.3d 92, 104 (holding "[t]he torts of negligence and nuisance ... frequently are, coexisting and practically inseparable.... [a] nuisance in many, if not in most, instances, especially with respect to buildings or premises, presupposes negligence.").

Plaintiffs

allege defendants failed to inspect, maintain, repair and remediate water intrusion, mold growth, plumbing leaks, moisture intrusion and other habitability defects. FAC, paras. 20-25. These same allegations underpin the negligence cause of action. *Id.* at paras. 77-83. MCM does not dispute the sufficiency of the allegations but argues plaintiffs failed to allege an independent basis for a nuisance claim, separate from the alleged negligence. "Where negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim." *El Escorial Owners' Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337, 1349.

Plaintiffs

argue a residential tenant may pursue nuisance claims arising from unsafe and dilapidated rental conditions, including against managing agents, citing *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 919-921, 929. While *Stoiber* held, under properly pleaded facts, a tenant could also pursue tort remedies arising from unsafe rental conditions, it does not contradict the later *El Escorial*, *supra*, ruling that negligence and nuisance claims arising from the same allegations are duplicative.

Under

El Escorial, *supra*, where the nuisance claim arises from the same alleged negligent conduct and adds no independent theory of liability, the nuisance claim is duplicative of the negligence claim. Plaintiffs must allege

with specificity not merely resultant nuisance but different underlying facts or circumstances giving rise to said nuisance. SUSTAINED with 15 days leave to amend.

MCM

demurs to the claim for breach of the implied covenant of quiet enjoyment. "The law is too well settled to require extensive comment or citation of authority that the covenant of quiet enjoyment is not breached until there has been an actual or constructive eviction." *Stockton Theatres, Inc. v. Palermo* (1954) 124 Cal.App.2d 353, 360. An actual eviction occurs when the landlord ousts the tenant or allows the tenant to be ousted by one with paramount title. *Giraud v. Milovich* (1939) 29 Cal.App.2d 543, 547. There is no breach unless there is a disturbance of possession. *Slater v. Conti* (1959) 171 Cal.App.2d 582, 585.

MCM

argues plaintiffs remain in possession, so cannot show "meaningful disturbance to their right to possession." Mtn., 8:24-25. The FAC alleges plaintiffs signed a lease in May 2025 and renewed the lease until the present day. FAC, paras. 131, 133. The FAC alleges breach of the covenant of quiet enjoyment because MCM's "acts and omissions rendered substantial portions of the premises unusable and unsuitable for the residential purposes for which they were leased." *Id.* at para. 134. The FAC does not allege relinquishment of possession or actual eviction.

Plaintiffs

argue actual possession or surrender is not a required element of a breach of covenant claim. A tenant may treat sufficiently serious interference as constructive eviction and surrender possession or may remain in possession and sue for breach of contract damages. *Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, at 588-590. There, plaintiffs were not required to relinquish possession or allege actual eviction to sustain a claim for breach of the implied covenant of quiet enjoyment.

Plaintiffs

alleged substantial interference with enjoyment of the property such that whether plaintiffs were constructively evicted is a question of fact not properly resolved on demurrer. See FAC, paras. 135-137.

In

reply, MCM first argues that plaintiffs fail to allege facts showing MCM was party to the underlying lease or owed plaintiffs a contractual covenant of quiet enjoyment. Defendants' meet and confer letter attached to demurrer, which states the bases for the demurrer, does not include this issue. See Decl. Poitras, para. 2, exh. A. A party cannot raise a new argument in reply not set forth in the moving papers and which opposing party did not have the opportunity to address. This is improper and cannot be considered. OVERRULED.

Defendant MCM's Motion to Strike

As

the court sustained MCM's demurrer to the second cause of action with leave to amend, the motion to strike punitive damages allegations is MOOT.